Congressional Budget Office
Cost Estimate

July 29, 2025

At a Glance

Commerce Legislation

As ordered reported by the Senate Committee on Commerce, Science, and Transportation on March 12, 2025

On March 12, 2025, the Senate Committee on Commerce, Science, and Transportation ordered reported 14 bills. This document provides estimates for 3 of those bills. One bill, S. 414, was reported on June 24,2025. Details of the estimated costs of each bill are discussed in the text.

CBO estimates that enacting each bill would increase spending subject to appropriation.

None of the bills would increase direct spending or revenues; thus, pay-as-you-go procedures do not apply.

CBO estimates that none of the bills would increase net direct spending or on-budget deficits in any of the four consecutive 10-year periods beginning in 2036.

All three bills contain private-sector mandates.

Bill	Net Increase or Decrease (-) in the Deficit Over the 2025-2035 Period (Millions of Dollars)	Changes in Spending Subject to Appropriation Over the 2025-2030 Period (Outlays, Millions of Dollars)	Mandate Effects?
S. 289	0	2	Yes
S. 389	0	8	Yes
S. 414	0	*	Yes

* = between zero and $500,000.

Detailed estimate begins on the next page.

See also
CBO's Cost Estimates Explained, *CBO Describes Its Cost-Estimating Process*, *Glossary*

Summary of Legislation

On March 12, 2025, the Senate Committee on Commerce, Science, and Transportation ordered reported 14 bills. This document provides estimates for 3 of those bills. One bill, S. 414, was reported on June 24, 2205.

S. 289 would ban the sale of certain products covered by the Consumer Product Safety Act and S. 389 would require the Consumer Product Safety Commission (CPSC) to adopt voluntary safety standards for lithium-ion batteries. S. 414 would require digital advertising platforms to report annually to the Federal Trade Commission (FTC).

Estimated Federal Cost

The costs of the legislation fall within budget functions 370 (commerce and housing credit) and 550 (health).

Basis of Estimate

For this estimate, CBO assumes that each bill will be enacted near the end of fiscal year 2025 and that the estimated amounts will be available each year. The cost estimate does not include any effects of interactions among the bills. If all three bills were combined and enacted as a single piece of legislation, the effects could be different from the sum of the separate estimates, although CBO expects that any differences would be small.

S. 289, the Youth Poisoning Protection Act, would ban the sale of products containing 10 percent or more by weight of sodium nitrite that are covered under the Consumer Product Safety Act. The legislation would not affect the sale or use of commercial or industrial products not ordinarily intended for consumer use or consumption.

Using information from the Consumer Product Safety Commission, CBO estimates that implementing S. 289 would cost $2 million over the 2025-2030 period; any related spending would be subject to the availability of appropriated funds.

S. 389, the Setting Consumer Standards for Lithium-Ion Batteries Act, would require the Consumer Product Safety Commission within 180 days of enactment, to adopt certain voluntary safety standards—specifically ANSI/CAN/UL 2271, 2849, and 2272—concerning rechargeable lithium-ion batteries used in electric bicycles, scooters, and other micromobility devices. The bill also would require the CPSC to determine the applicable scope of covered consumer products and to monitor and evaluate future revisions to the voluntary standards and report to the Congress within five years of enactment.

Using information from the CPSC, CBO estimates that implementing S. 389 would cost $8 million over the 2025–2030 period; any related spending would be subject to the availability of appropriated funds.

S. 414, the ADS for Mental Health Services Act, would require certain digital advertising platforms to report annually to the Federal Trade Commission about advertising on their platforms for certain mental health services, including information on the number, percent, and dollar value of such advertisements. Platforms that would be affected by the bill include social media platforms, public facing websites, online services, and mobile applications with more than 100 million unique monthly users. The bill also would require the FTC to report annually to the Congress summarizing that data. CBO estimates that enacting S. 414 would cost less than $500,000 over the 2025-2030 period. Any related spending would be subject to the availability of appropriated funds.

Pay-As-You-Go Considerations

The Statutory Pay-As-You-Go Act of 2010 establishes budget-reporting and enforcement procedures for legislation affecting direct spending or revenues. None of the bills would affect direct spending or revenues; thus, pay-as-you-go procedures do not apply.

Increase in Long-Term Net Direct Spending and Deficits

CBO estimates that enacting S. 289, S. 389 and S. 414 would not increase net direct spending or deficits in any of the four consecutive 10-year periods beginning in 2036.

Mandates

All three bills would impose private-sector mandates as defined in in the Unfunded Mandates Reform Act (UMRA). None of the bills would impose intergovernmental mandates.

S. 289, the Youth Poisoning Protection Act, would impose a private-sector mandate as defined in UMRA by banning the sale of consumer products containing 10 percent or more of sodium nitrite by weight. The prohibition would not apply to industrial uses or to food preservation. Because there is only a small market for consumer products containing that much sodium nitrite and some states already have curtailed the sale of products containing sodium nitrite, CBO estimates that the cost of the mandate would not exceed the private-sector threshold established in UMRA ($206 million in 2025, adjusted annually for inflation).

S. 389, the Setting Consumer Standards for Lithium-Ion Batteries Act, would impose a private-sector mandate as defined in UMRA by requiring manufacturers of electric mobility devices, including bicycles and scooters, to comply with a prospective Consumer Product Safety Commission safety standard related to the risk of fire in lithium-ion batteries. Based on voluntary compliance with the specified standard by domestic manufacturers and current state and local laws requiring compliance, CBO estimates that the cost of the mandate would

not exceed the annual private-sector threshold established in UMRA ($206 million in 2025, adjusted annually for inflation).

S. 414, the ADS for Mental Health Services Act, would require certain digital advertising platforms to report to the FTC on their public service advertisements for mental and behavioral health. That requirement would impose a private-sector mandate as defined by UMRA. CBO estimates the cost of the mandate would be small and not exceed the threshold established in UMRA ($206 million in 2025, adjusted annually for inflation) because the mandated entities generally already possess or collect the information required to be reported under the bill.

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